Oshom Bali

TERMS & CONDITIONS: EXCLUSIVE HOTEL & VENUE BUYOUT



This document outlines the Terms and Conditions ("T&C") governing the exclusive buyout of **Oshom Bali ("the Hotel")** by the **Client ("the Client")**. These T&C are an integral part of any quotation, proposal, or agreement issued by Oshom Bali.

1. DEFINITIONS

- **Accommodation Buyout:** Exclusive use of all guest rooms within the Hotel. This buyout does not include exclusive access to public spaces such as the Lobby, Courtyard, Rooftop, Restaurant, Lawn, Library, Wellness Studio, and Lava Shack.
- **Full Venue Buyout:** Exclusive use of all rooms and designated event / public spaces at the Hotel.
- **Net Rate:** The base price for services before the addition of government-mandated taxes and service charges.
- **Buyout Period:** The specific dates and times for which the Client has secured exclusive use of the Hotel and/or Venues.

2. QUOTATION & VALIDITY

- All quotations are provided in Indonesian Rupiah (IDR).
- Quotations are valid for a period of 14 (fourteen) days from the date of issue, unless otherwise stated.
- The Hotel reserves the right to amend pricing should the event specifications change or after the validity period has expired.

3. BOOKING & PAYMENT TERMS

- **Reservation:** A tentative hold may be placed on requested dates for a maximum of 7 days. A formal reservation is only confirmed upon receipt of a signed agreement and the non-refundable deposit.
- **Payment Schedule:**
    - ❖ A 50% non-refundable deposit of the total net buyout amount is required to secure the booking upon signing the contract.
    - ❖ The remaining 50% balance is due no later than 60 (sixty) days prior to the first day of the Buyout Period.

- ❖ For bookings made within 60 days of the event, 100% payment is required for confirmation.
- ❖ Methods of Payment: Bank transfer to a designated account is the preferred method. All bank charges are the responsibility of the Client.

4. CANCELLATION & NO-SHOW POLICY

All cancellation notices must be provided in writing. The following cancellation charges will apply:

- **Cancellation more than 60 days prior to arrival:** Forfeiture of the 50% deposit.
- **Cancellation within 30 days prior to arrival**: 90% of the total agreed buyout amount will be charged.
- **No-Show:** In the event of a no-show, the full buyout amount will be charged.

5. BUYOUT INCLUSIONS & EXCLUSIVITY

Full Accommodation Buyout (IDR 153,000,000 net/night) Includes:

- Exclusive use of all rooms (Treehouses and Suites)
- Daily breakfast for two persons per room.
- Daily afternoon tea for all in-house guests.
- Evening turndown service.
- Complimentary entrance fee to Nuanu for all in-house guests.

Full Venue Buyout (IDR 100,000,000 net/day) Includes:

- **Full, exclusive access to the following venues:** *Restaurant*, *Courtyard*, *Lawn*, *Wellness Studio*, *Nest*, *Lava Shack*, *Rooftop*, *and Library.*
- **Exclusivity:** During the contracted Buyout Period, the Hotel and its listed venues will be closed to the public and dedicated solely to the Client's party. No other guests will be permitted on the property.

6. TAXES AND SERVICE CHARGES

- All net rates are subject to a 21% charge, comprising of:
- 10% Government Tax (PPN)
- 11% Service Charge
- This 21% charge is applicable to all goods and services provided by the Hotel unless explicitly stated otherwise in writing.

7. GUARANTEED GUEST COUNT & FINAL ITINERARY

- A preliminary itinerary and estimated guest count must be provided upon booking.
- A final guaranteed number of guests and a detailed event itinerary must be submitted no later than 30 (thirty) days prior to the event. This number will be considered the minimum for billing purposes and cannot be reduced.
- The Hotel will prepare all arrangements based on the final guaranteed numbers.

8. ADDITIONAL CHARGES

The buyout rate does not include the following, which will be quoted separately and invoiced upon conclusion of the event:

Food and Beverage (F&B) consumption beyond the specified inclusions (e.g., all lunches, dinners, alcoholic beverages, special dietary menus).

- Spa treatments and wellness activities.
- Audiovisual equipment rental and technical support.
- Entertainment, performers, or external vendors.
- Additional staffing requirements beyond the standard operational team.
- Security, permits, or any other third-party services required by the Client.
- Any damage to Hotel property caused by the Client, their guests, or vendors.

9. THIRD-PARTY VENDORS

- Any external vendors (e.g., photographers, bands, decorators) must be pre-approved by the Hotel's event manager.
- Approved external vendors must provide proof of valid public liability insurance and adhere to all Hotel policies and regulations.
- The Hotel is not liable for the services or performance of any third-party vendors.

10. LIABILITY & INDEMNIFICATION

- The Hotel shall not be held liable for any loss, damage, or injury to persons or property belonging to the Client, their guests, or vendors during the Buyout Period.
- The Client agrees to indemnify and hold harmless Oshom Bali, its employees, and agents from any and all claims, damages, or losses arising from the event.

11. FORCE MAJEURE

Oshom Bali shall not be held liable for any failure or delay in performing its obligations under this agreement if such failure or delay is due to circumstances beyond its reasonable control, including but not limited to acts of God, war, terrorism, government regulations, public health emergencies, natural disasters, or any other cause that makes it impossible or commercially impracticable to host the event.

12. GENERAL PROVISIONS

- **Check-in/Check-out:** Standard check-in and check-out times apply unless a specific arrangement has been agreed upon in writing and may be subject to additional charges.
- **Music & Entertainment:** All entertainment must conclude by the agreed time, and sound levels must comply with local ordinances and Hotel policy.

- **Damage to Property:** The Client is financially responsible for any damage to the Hotel's premises or assets caused by any member of their party or vendors.
- **Conduct:** The Hotel reserves the right to require any person(s) whose conduct is deemed disorderly to leave the premises. The Client is responsible for the conduct of all guests and vendors.

By proceeding with the booking, the Client acknowledges that they have read, understood, and agreed to be bound by these Terms and Conditions.

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